

THE TELANGANA ACTS (REPEALING) ACT, 2016

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State of Telangana - Act

THE TELANGANA ACTS (REPEALING) ACT, 2016

TELENGANA

India

THE TELANGANA ACTS (REPEALING) ACT, 2016

Act 7 of 2017

Published on 20 January 2017

Not commenced

[This is the version of this document from 20 January 2017.]

[Note: The original publication document is not available and this content could not be verified.]

AN ACT TO REPEAL CERTAIN ENACTMENTS OF THE STATE OF TELANGANA.

Be it enacted by Legislature of the State of Telangana in the Sixty-seventh Year of the Republic of India as follows:-

1.

Short title.

This Act may be called the Telangana Acts (Repealing) Act, 2016.

2.

Repeal of certain Acts.

(1)

The enactments specified in the Schedule-I and the Schedule-II are hereby repealed to the extent mentioned in column 5 thereof, in their application to the State of Telangana.

(2)

The enactments specified in the Schedule-III shall be omitted as specified therein.

3.

Savings.

The repeal of any enactment under section 2 shall not affect any other enactment in which the repealed enactment has been applied, incorporated or referred to;

and this Act shall not affect the validity, invalidity, effect or consequences of anything already done or suffered, or any right, title, obligation or liability already acquired, accrued or incurred, or any remedy or proceeding in respect thereof, or any release or discharge of or from any debt, penalty, obligation, liability, claim or demand, or any indemnity already granted, or the proof of any past act or thing;

nor shall this affect any principle or rule of law, or established jurisdiction, form or course of pleading, practice or procedure, or existing privilege, restriction, exemption, office or appointment, notwithstanding that the same respectively may have been in any manner affirmed or

recognised or derived by in or from any enactment hereby repealed;

nor shall the repeal by this Act of any enactment revive or restore any jurisdiction, office, liability, right, title, privilege, restriction, exemption, practice, procedure or other matter or thing not now existing or in force;

nor shall the repeal of the enactments by this Act affect the audit, examination, accounting, investigation, inquiry or any other action taken or to be taken in relation thereto by any authority and such audit, examination, accounting, investigation, inquiry or action could be taken, and, or

continued as if the said enactments are not repealed by this Act.

4.

Applicability of the Telangana General Clauses Act, 1891.

Subject to the provisions of section 3, the provisions of section 8 of the Telangana General Clauses Act, 1891 shall apply.

SCHEDULE I

[see section 2 (1)]

Sl. No.

Year

Act No.

Short Title

Extent of Repeal

1.

1983

16

Sri Padmavathi Mahila Viswavidyalam (Women's University) Act, 1983.

The whole

2.

1997

17

The Dravidian University Act, 1997.

The whole

3.

1995

12

Sri Venkateshwara Institute of Medical Sciences University Act, 1995.

The whole

4.

2006

29

Sri Venkateshwara Vedic University Act, 2006.

The whole

5.

2008

32

Damodaram Sanjivayya National Law University Act, 2008

The whole

6.

1990

10

The Telangana Educational Service (Regulation of Pay Fixation of Principals and Lecturers) Act, 1990.

The whole

7.

1995

34

The Telangana Educational Institutions Grant-in- Aid (Regulation) Supplementary Provision Act, 1995.

The whole

8.

1350 F.

11

The Telangana Power Alcohol Act, 1350 F.

The whole

9.

1353 F.

IX

The Telangana Bhagelas Contracts Act, 1353 F.

The whole

10.

1961

XXIX

The Madras Cultivating Tenants Protection (Telangana Amendment) Act, 1961.

The whole

11.

1956

XXXVI

The Telangana Abolition of Whipping Act, 1956.

The whole

12.

1956

XLVIII

The Telangana Money Lenders (Validity of Licenses) Act, 1956.

The whole

13.

1957

II

The Telangana Consolidated Fund (Withdrawal of Moneys) Act, 1957.

The whole

14.

1961

VII

The Telangana (Transferred Territories) Extension of Laws Act, 1961.

The whole

XLII

The Telangana Laws (Amendment of Short Titles) (No.2) Act, 1961.

15.	
1961	
XXVII	
The Telangana District Boards (Extension of Term of office of Members) Act, 1961.	
The whole	
16.	
1976	
39	
The Telangana Tenants and Ryots Protection Act, 1976.	
The whole	
17.	
1995	
9	
The Telangana Marine Fishing (Regulation) Act, 1995.	
The whole	
18.	
1885	
III	
The Telangana Minor Ports Landing and Shipping Fees Act, 1885.	
The whole	
SCHEDULE-II	
[see section 2 (2)]	
State enactments extending/amending the Central Acts in their application to the combined State of Andhra Pradesh.	
Sl. No	
Year	
Act No.	
Short Title	
Extent of Repeal	
1.	
1984	
26	
The Indian Electricity (Andhra Pradesh Amendment) Act, 1984.	
The whole	
2.	
2000	
35	
The Indian Electricity (Andhra Pradesh Amendment) Act, 2000	
The whole	
3.	
1953	
VII	
The Evacuee Interest (Separation) Telangana Supplementary Act, 1953.	
The whole	
4.	
1959	
18	
The Evacuee Interest (Separation) Andhra Pradesh Supplementary (Extension and Amendment) Act, 1959.	
The whole	
5.	
1960	
28	

The Evacuee Interest (Separation) Andhra Pradesh Amendment Act, 1960.

The whole

6.

1960

27

The Glanders and Farcy (Andhra Pradesh Extension and Amendment) Act, 1960.

The whole

7.

1959

20

The Land Acquisition (Andhra Pradesh Extension and Amendment) Act, 1959.

The whole

8.

1976

22

The Land Acquisition (Andhra Pradesh Amendment) Act, 1976.

The whole

9.

1983

9

The Land Acquisition (Andhra Pradesh Amendment and Validation) Act, 1983.

The whole

10.

2008

23

The Land Acquisition (Andhra Pradesh Amendment) Act, 2008.

The whole

11.

1961

V

The Indian Fisheries (Andhra Pradesh Extension and Amendment) Act, 1961.

The whole

SCHEDULE-III

[see section 2 (2)]

The enactments at Sl.Nos.39, 61, 67, 142 and 150 along with the entries in columns 1 to 4 thereof, in the First Schedule to the Telangana Adaptation of Laws Order, 2016 issued in G.O.Ms.No.45, Law (F) Department, dated 01.06.2016 shall be omitted as shown below.

(Entries in G.O.Ms.No. 45, law (F) Department, dated 01.06.2016)

Sl. No.

Year

Short Title

Short Title, Number and year as modified/amended

39.

1958

The Andhra Pradesh Dowry Prohibition Act, 1958 (Act 1 of 1958).

The Telangana Dowry Prohibition Act, 1958 (Act 1 of 1958).

61.

1965

The Andhra Pradesh Money Circulation Schemes (Prohibition) Act, 1965 (Act 30 of 1965).

The Telangana Money Circulation Schemes (Prohibition) Act, 1965 (Act 30 of 1965).

67.

1971

The Andhra Pradesh Chit Funds Act, 1971 (Act 9 of 1971).

The Telangana Chit Funds Act, 1971 (Act 9 of 1971).

142.

2000

The Andhra Pradesh Private Aided Educational Staff (Regulation of Pay) Act, 2000 (Act 9 of 2000).

The Telangana Private Aided Educational Staff
(Regulation of Pay) Act, 2000 (Act 9 of 2000).

150.

2003

The Andhra Pradesh Regulation of the Unauthorised Constructions in Municipal Corporations, Municipalities and Urban Development Authorities Act, 2003 (Act 6 of 2003).

The Telangana Regulation of the Unauthorised Constructions in Municipal Corporations,
Municipalities and Urban Development Authorities Act, 2003 (Act 6 of 2003).

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